End User License Agreement

Aqarios Constrained Quantum Optimizer (Quantum Function)

Version 1.0
Effective Date: November 11, 2026

This End User License Agreement (the "**EULA**") is a binding agreement between **Aqarios GmbH**, Prinzregentenstr. 120, 81677 Munich, Germany, registered with the commercial register of the Local Court of Munich under HRB 266522 ("**Aqarios**"), and the organization on whose IBM Quantum account the Function is enabled or used (the "**Customer**").

The Customer accepts this EULA by accepting it where it is presented on the IBM Quantum Platform, by enabling the Function, or by using it, whichever occurs first. The person doing so confirms that they are authorized to bind the Customer.

1. Scope

1.1 This EULA applies to the Quantum Function "Constrained Quantum Optimizer" made available by Aqarios through the Quantum Functions Catalog on the IBM Quantum Platform, including its updates and documentation (the "**Function**").

1.2 IBM is not a party to this EULA. Access to the IBM Quantum Platform, computing resources and any amounts charged by IBM in connection with the Function are governed exclusively by the Customer's agreement with IBM.

1.3 Individual written agreements between Aqarios and the Customer take precedence over this EULA. Terms and conditions of the Customer do not apply.

2. Right of Use

2.1 Aqarios grants the Customer a non-exclusive, non-transferable and non-sublicensable right to use the Function through the IBM Quantum Platform for research, development, evaluation and educational purposes (the "**Permitted Purposes**"), for as long as the Function is enabled for the Customer. The Permitted Purposes include in particular evaluating whether and how the Function can be applied to the Customer's own optimization problems, including with the Customer's own data, and research projects carried out together with or on behalf of partners, including contract research, provided that the Function is used by the Customer itself, including users authorized under the Customer's IBM Quantum account. Use of the Function by such users is deemed use by the Customer.

2.2 Productive use is not permitted. Productive use means using results in live business operations or as a basis for operational decisions, integrating the Function into productive systems or into recurring or automated business workflows, or offering the Function or its results to third parties as a commercial service. Research projects under Section 2.1 are not productive use, provided that neither the Customer nor its partners use the results in live business operations or as a basis for operational decisions. Use beyond the Permitted Purposes requires a separate agreement with Aqarios.

2.3 The Customer may use results for the Permitted Purposes, share them with partners in research projects under Section 2.1 for the same purposes, and publish research results obtained with the Function, including comparisons with other methods. The Customer shall appropriately acknowledge the Function and Aqarios in such publications.

2.4 The Customer may not:

(a) make the Function accessible to anyone other than users authorized under the Customer's IBM Quantum account, in particular by integrating it into a service through which others can submit problems to it;

(b) reverse engineer, decompile or otherwise attempt to derive the source code, algorithms or internal logic of the Function, except to the extent permitted under mandatory law;

(c) use the Function or its results to develop a product or service that competes with the Function;

(d) use the Function for any purpose on which critical infrastructure or human life depends; or

(e) use the Function in breach of applicable export control or sanctions law.

3. Operation

3.1 Aqarios may at any time change, extend, restrict or discontinue the Function, including withdrawing it from the Quantum Functions Catalog. No entitlement to the continued provision of the Function or of any of its features arises from its previous provision.

3.2 Aqarios may end the Customer's right to use the Function with immediate effect where the Customer materially breaches this EULA or where a legal or regulatory requirement so requires, and may request that IBM deactivate the Function for the Customer.

3.3 Support for the IBM Quantum Platform, including access, enabling the Function and any amounts charged by IBM in connection with it, is provided by IBM under the Customer's agreement with IBM. For questions about the Function itself, the Customer may contact Aqarios at support@aqarios.com during regular business hours, Monday to Friday, 09:00 to 17:00 CET/CEST, excluding public holidays in Bavaria, Germany. No particular response times, resolution times or service levels are owed.

3.4 The Function is executed within IBM's infrastructure. Aqarios does not receive, access or use the models, data or results that the Customer submits to or obtains from the Function. Any logging or telemetry of the Function is limited to operational and diagnostic metadata that does not contain such models, data or results. The Customer shall not provide such models, data or results to Aqarios, including in support requests under Section 3.3.

3.5 All rights in the Function remain with Aqarios or its licensors. Aqarios may use feedback on the Function without restriction and without compensation.

4. Liability

4.1 The Function is accessed through the IBM Quantum Platform; access to the Platform is governed by the Customer's agreement with IBM. It does not constitute a defect if a particular solution quality, objective value, runtime or performance advantage is not achieved, or if the Function does not find a feasible or optimal solution to a submitted problem. The Customer is solely responsible for validating results and for any decision based on them. Section 4.2 remains unaffected.

4.2 Aqarios is liable without limitation for intent and gross negligence, for injury to life, body or health, under the German Product Liability Act, and to the extent of an express guarantee.

4.3 For a slightly negligent breach of a material contractual obligation, meaning an obligation whose fulfilment is essential for the proper performance of this EULA and on whose fulfilment the Customer regularly relies and may rely, liability is limited to the foreseeable damage typical for this type of contract and to EUR 10,000 in aggregate for all damaging events in a calendar year. Any further liability for slight negligence is excluded. Strict liability for defects already existing at the time this EULA is concluded is excluded.

4.4 Claims for damages become time-barred one year after the start of the statutory limitation period, except in the cases of Section 4.2.

4.5 The Customer shall indemnify Aqarios against third-party claims, including reasonable costs of legal defense, arising from a breach of Section 2 by the Customer, unless the Customer is not responsible for the breach. This Section does not apply to the extent the Customer is prohibited by the law applicable to it from giving indemnities.

4.6 Sections 4.1 to 4.4 also apply in favor of Aqarios' legal representatives, employees, vicarious agents and affiliated companies.

5. Final Provisions

5.1 Aqarios may amend this EULA with effect for the future by making the amended version available where this EULA is presented on the IBM Quantum Platform at least thirty (30) days before it takes effect. Where Aqarios is able to reach the Customer, it will also inform the Customer of material changes. A Customer who does not agree may disable the Function before that date; any use after that date is governed by the amended version.

5.2 Sections 2.3, 2.4, 3.5 and 4 survive the end of the Customer's use of the Function.

5.3 Events beyond a party's control, including the unavailability of the IBM Quantum Platform or of quantum hardware, release that party from its obligations for their duration.

5.4 Aqarios may transfer this EULA to an affiliated company or in connection with a merger, reorganization or sale of its business.

5.5 This EULA is governed by German law, excluding the CISG. The exclusive place of jurisdiction is Munich, Germany, to the extent legally permissible.